

CHAPTER 42

Valuation for Rating Act, 1953

ARRANGEMENT OF SECTIONS

Section

1. Repeal of ss. 74 to 82 of 11 & 12 Geo. 6. c. 26.
2. New provisions for ascertaining gross value of dwelling-houses, private garages and private storage premises.
3. Definitions of "dwelling-house", "private garage" and "private storage premises".
4. Reduction of gross value in case of certain hereditaments partly used as private dwellings.
5. Modification of gross value in case of agricultural dwellinghouses.
6. Special provision where additional services are provided by landlord.
7. Financial provisions.
8. Short title, interpretation and extent.

An Act to make new provision as respects the gross value for rating purposes of dwelling-houses, private garages and private storage premises, and of certain hereditaments partly used as private dwellings; and for purposes connected with the matter aforesaid.
[31st July 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Repeal of ss. 74 to 82 of 11 & 12 Geo. 6. c. 26.

1. Sections seventy-four to eighty-two of the Local Government Act, 1948 (which relate to the gross value for rating purposes of dwelling-houses as therein defined) are hereby repealed.

New provisions for ascertaining gross value of dwelling-houses, private garages and private storage premises.

2.—(1) For the purpose of making or altering the first valuation lists made after the passing of this Act, the gross value for rating purposes of a hereditament which is either a dwelling-house or a private garage or private storage premises (as herein-after defined respectively) shall not be ascertained by reference to the definition of gross value in section sixty-eight of the Rating and Valuation Act, 1925 (hereafter in this Act referred to as "the Act of 1925") or in section four of the Valuation (Metropolis) Act, 1869 (hereafter in this Act referred to as "the Act of 1869"), but shall be an amount equal to the rent specified in the next following subsection:

Provided that this subsection shall not apply in a case where that rent exceeds the amount which would be the gross value of the hereditament if ascertained by reference to the said definition.

(2) The said rent is that at which the hereditament in question might reasonably have been expected on or about the thirtieth day of June, nineteen hundred and thirty-nine, to let from year

to year if the tenant had undertaken to pay all usual tenant's rates and taxes and if the landlord had undertaken to bear the cost of the repairs and insurance, and the other expenses, if any, necessary to maintain the hereditament in a state to command that rent.

(3) For the purposes of the last preceding subsection it shall be assumed—

- (a) that the hereditament was subsisting on and about the said thirtieth day of June in the state in which it actually subsists at the time of valuation; and
- (b) that the locality in which the hereditament is situated was on and about the said day in the same state, as respects the other premises situated in that locality and (subject to the next following subsection) as respects the occupation and use of those premises, as respects the transport services and other facilities available to persons living or working in the locality, and as respects other matters affecting the amenities of the locality, as it is at the time of valuation.

(4) In the application of paragraph (b) of the last preceding subsection as respects the occupation and use of other premises in the locality which are used for residential purposes, and were so used on or about the said thirtieth day of June, any increase since the said day in the number of persons so using the premises shall be disregarded except in so far as it affects the amenities of the locality or of the hereditament whose gross value is being ascertained.

(5) Where in ascertaining the gross value of a dwelling-house it becomes apparent that, by reason of either or both of the following circumstances, namely—

- (a) the effect of the Rent and Mortgage Interest Restrictions Acts, 1920 to 1938, in relation to any other dwelling accommodation, and
- (b) the existence in the locality on and about the said thirtieth day of June of a marked scarcity or abundance of dwelling accommodation, or of any particular kind of dwelling accommodation,

the rent referred to in subsection (2) of this section would apart from this subsection be unduly high or unduly low in relation to the rents which prevailed on and about that day for other kinds of dwelling accommodation in the locality, or which then prevailed in neighbouring localities, then (without prejudice to the assumptions aforesaid) the said rent shall be determined as if on and about that day all the accommodation in the locality of a kind comparable with the dwelling-house had been due shortly to become available for letting free from any restrictions (whether on rent or on the recovery of possession) imposed by the said Acts of

1920 to 1938 and without any marked deficiency or excess in the amount of such accommodation as compared with the number of persons acceptable as tenants of such accommodation and genuinely competing for tenancies thereof.

(6) Nothing in the last preceding subsection shall be construed as affecting the principle that, in determining the gross value of a hereditament for rating purposes, no account is to be taken of any restriction on rent in so far as it limits the rent which may be required or recovered from a tenant of that hereditament.

(7) For the purposes of this section the time of valuation, in relation to any act done or proceeding taken for the purpose mentioned in subsection (1) of this section, shall be taken to be the time by reference to which the gross value of the hereditament in question would for the purposes of that act or proceeding have fallen to be ascertained if this section had not been enacted.

Definitions
of "dwelling-
house",
"private
garage" and
"private
storage
premises".

3.—(1) Subject to the provisions of this section, in this Act—

the expression "dwelling-house" means a hereditament used wholly for the purposes of a private dwelling or private dwellings;

the expression "private garage" means a hereditament having a floor space not exceeding two hundred and forty square feet and used as a lock-up garage, other than a hereditament which—

(a) forms part of the premises in which a business of providing services for motor vehicles is carried on, or

(b) is provided by the keeper of a hotel, inn, guest-house or boarding-house and used wholly or mainly for the motor vehicles of his guests, or

(c) is used as a garage for a motor vehicle chargeable with duty under section three, four or five of the Vehicles (Excise) Act, 1949 (which sections comprise hackney carriages, tractors and goods vehicles), whether it is also used for any other vehicle or not; and

the expression "private storage premises" means a hereditament used wholly in connection with a dwelling-house or dwelling-houses and so used wholly or mainly for the storage or accommodation of any of the following articles belonging to persons residing in that dwelling-house or those dwelling-houses, namely, household stores and other articles of domestic use and light vehicles (that is to say, bicycles, tricycles, perambulators and other similar vehicles) whether mechanically propelled or not.

(2) For the purposes of this Act a hereditament which is used for the letting of rooms singly for residential purposes shall be deemed not to be used for the purposes of a private dwelling or private dwellings if the whole, or substantially the whole, of the available accommodation is used for such lettings; but save as

aforesaid a hereditament shall not be deemed for the purposes of this Act to be used otherwise than wholly for the purposes of a private dwelling or private dwellings by reason that one or more rooms therein are let for residential purposes.

In this subsection "the available accommodation" means so much of the accommodation in the hereditament in question as is suitable for being used for the letting of rooms singly for residential purposes.

(3) For the purposes of this Act a hereditament shall be deemed not to be used for the purposes of a private dwelling or private dwellings if it consists wholly or mainly of land used as sites for moveable dwellings within the meaning of section two hundred and sixty-nine of the Public Health Act, 1936.

(4) For the purposes of this Act a hereditament shall not be deemed to be used otherwise than wholly for the purposes of a private dwelling or private dwellings by reason of either or both of the following circumstances, that is to say—

- (a) that it includes a garage, outhouse, garden, yard, court, forecourt or other appurtenance which is not used, or not used wholly, for the purposes of a private dwelling;
- (b) that part of the hereditament, not being a garage, outhouse, garden, yard, court, forecourt or other appurtenance, is used partly for the purposes of a private dwelling or private dwellings and partly for other purposes, unless that part was constructed, or has been adapted, for those other purposes.

(5) A hereditament shall not be deemed for the purposes of this Act to be used otherwise than wholly for the purposes of a private dwelling or private dwellings by reason that a person who resides in the hereditament, or in part thereof, is required or permitted to reside there in consequence of his employment or of holding an office.

(6) In this section references to the letting of rooms are references to the letting thereof by way either of a tenancy or of a licence, and either with or without board or other services or facilities.

4.—(1) Subject as hereinafter provided, this section shall apply to any hereditament which satisfies the following conditions, that is to say—

- (a) that it consists partly of premises used wholly for the purposes of a private dwelling or private dwellings and partly of premises not so used; and
- (b) that not less than one-tenth of the unreduced gross value of the hereditament is attributable to the premises used wholly for the purposes of a private dwelling or private dwellings.

(2) In this section the expression "the unreduced gross value", in relation to a hereditament, means the amount which apart

Reduction of gross value in case of certain hereditaments partly used as private dwellings.

from this section would be the gross value thereof in accordance with the definition of gross value in the Act of 1925 or the Act of 1869, as the case may be.

(3) In ascertaining, for the purpose of making or altering the first valuation lists made after the passing of this Act, the gross value of any hereditament to which this section applies, there shall be calculated—

- (a) the amount which represents the proportion of the unreduced gross value thereof which is attributable to that part of the hereditament which is used wholly for the purposes of a private dwelling or private dwellings; and
- (b) the amount which would represent the proportion of the gross value of the hereditament so attributable if the gross value thereof fell to be ascertained in accordance with the provisions of this Act relating to dwelling-houses;

and, if the amount referred to in paragraph (a) of this subsection exceeds the amount referred to in paragraph (b) thereof, the gross value of the hereditament for the said purpose shall be the unreduced gross value thereof reduced by the difference between those amounts.

(4) This section shall not apply to—

- (a) any hereditament being or comprising premises which are licensed for the sale of intoxicating liquor for consumption on the premises;
- (b) any hereditament which does not fall within the description “houses and buildings without land other than gardens” within the meaning of the enactments relating to the ascertainment of rateable value; or
- (c) any industrial or freight-transport hereditament (within the meaning of the Rating and Valuation (Apportionment) Act, 1928),

and shall not apply to a hereditament where the premises not used wholly for the purposes of a private dwelling or private dwellings are or include premises used for the purposes of a hotel, inn, guest-house or boarding-house or for the letting of rooms singly for residential purposes.

(5) Subsections (4) to (6) of the last preceding section shall apply for the purposes of this section, with the substitution, for references in those subsections to a hereditament, of references to premises.

Modification
of gross value
in case of
agricultural
dwelling-
houses.

5.—(1) In relation to a dwelling-house occupied in connection with agricultural land and used as the dwelling of a person who—

- (a) is primarily engaged in carrying on or directing agricultural operations on that land, or

- (b) is employed in agricultural operations on that land in the service of the occupier thereof and is entitled, whether as tenant or otherwise, so to use the premises only while so employed,

subsection (2) of section two of this Act shall have effect as if the undertaking on the part of the tenant referred to in that subsection had incorporated a provision precluding the hereditament from being occupied otherwise than in connection with agricultural land and from being used otherwise than as the dwelling of such a person as aforesaid.

(2) In the application of subsection (2) of the last preceding section to a hereditament, where the premises referred to in paragraph (b) of subsection (1) of that section are premises occupied and used as first mentioned in the preceding subsection, the definition of gross value in the Act of 1925 or the Act of 1869, as the case may be, shall be deemed to have effect as if any letting of the hereditament from year to year would necessarily be on terms precluding those premises from being occupied and used otherwise than as aforesaid.

(3) Section seventy-two of the Local Government Act, 1929 (which makes provision corresponding to subsection (1) of this section) shall apply for the purposes of the proviso to subsection (1) of section two of this Act, that is to say, for determining what would be the gross value if ascertained as mentioned in that proviso, but shall not apply for the purpose of ascertaining the gross value of a hereditament where that value falls to be ascertained in accordance with the said subsection (1).

(4) In this section the expression "agricultural land" has the meaning assigned to it by section two of the Rating and Valuation (Apportionment) Act, 1928.

6.—(1) Where for the purpose of ascertaining the gross value of a hereditament which is either a dwelling-house or a private garage or private storage premises regard is had to the rent payable under an existing or former tenancy thereof and to the other circumstances relating to such a tenancy, and those circumstances include or included the provision by the landlord of services to which this section applies, or an undertaking on the part of the landlord to provide such services, any profit which the landlord makes or made, or which he might be expected to make or have made, in providing those services shall be excluded in determining how much of that rent is or was attributable to the provision of those services or the undertaking to provide them.

Special provision where additional services provided by landlord.

(2) The services to which this section applies are any services other than the payment of the cost of repairs and insurance and of the other expenses, if any, necessary to maintain the hereditament in a state to command the rent payable under the tenancy in question.

(3) Subsection (1) of this section shall have effect whether the gross value of the hereditament falls to be ascertained in accordance with subsection (1) of section two of this Act or by reference to the definition of gross value in section sixty-eight of the Act of 1925 or in section four of the Act of 1869; and where the gross value of a dwelling-house or a private garage or private storage premises falls to be ascertained by reference to the said definition in section sixty-eight of the Act of 1925, that definition shall apply as if the proviso thereto (which provides that no account shall be taken of the value of such services as aforesaid) were omitted:

Provided that nothing in this section shall apply for the purpose of altering any valuation list in force at the passing of this Act.

Financial
provisions.

7. There shall be paid out of moneys provided by Parliament any increase which is attributable to the provisions of this Act—

(a) in the sums payable out of moneys so provided under subsection (1) of section one hundred and forty-three of the Local Government Act, 1948 (which relates to the remuneration and expenses of valuation officers and their assistants and to the expenses of Ministers in consequence of that Act);

(b) in the Exchequer Equalisation Grants payable under Part I of the said Act of 1948.

Short title,
interpretation
and extent.

8.—(1) This Act may be cited as the Valuation for Rating Act, 1953.

(2) The definition of “hereditament” in section sixty-eight of the Act of 1925 shall apply for the purposes of this Act and (in the application of this Act to London) shall so apply as if that Act extended to London.

(3) Except in so far as the context otherwise requires, any reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by or under any other enactment.

(4) This Act shall not extend to Scotland or to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Valuation (Metropolis) Act, 1869	32 & 33 Vict. c. 67.
Rating and Valuation Act, 1925	15 & 16 Geo. 5. c. 90.
Rating and Valuation (Apportionment) Act, 1928	18 & 19 Geo. 5. c. 44.
Local Government Act, 1929	19 & 20 Geo. 5. c. 17.
Public Health Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Vehicles (Excise) Act, 1949	12, 13 & 14 Geo. 6. c. 89.